

26STCV06932 26STCV06932

County: los-angeles

Division: Civil Law and Motion

Department: 14

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Case Number: 26STCV06932 Hearing Date: September 23, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

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DEPARTMENT 14

DARLENE CLARK,

Plaintiff,

v.

BWDAC, INC., et al.

Defendants.

Case No. 26STCV06932

Hearing Date: September 23, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

PLAINTIFF'S MOTION FOR TRIAL PREFERENCE

I.

Background

On March 3, 2026, Plaintiff Darlene Clark, who is 68 years old, filed her complaint for personal injury alleging that she was exposed to asbestos when her family members brought asbestos-containing dust home from their work in the automotive industry and a plastic injection molding company. Plaintiff also alleges that she was exposed to asbestos-contaminated talcum products her father used in their home. On August 27, 2026, Plaintiff filed her motion for trial setting preference under Code of Civil Procedure section 36, subdivisions (e) and (d) arguing that Plaintiff's health is such that there is substantial medical doubt of her survival beyond six months. Alternatively, Plaintiff contends that the interests of justice will be served by granting trial preference.

On September 10, 2026, Defendants, Pneumo Abex, LLC, BWDAC, and Kimberly-Clark Corporation (collectively "Defendants") opposed the motion for trial preference, arguing Plaintiff failed to provide clear and convincing medical documentation supporting her assertion that there is substantial medical doubt of her survival beyond six months. Additionally, Defendants argue that Plaintiff failed to establish that the interests of justice will be served by granting trial preference. On the same date, Defendants Tracy Industries, Inc. and Merck & Co., Inc. filed a conditional non-opposition to the motion for trial preference.

On September 16, 2026, Plaintiff replied, arguing that her medical records establish that there is substantial medical doubt of her survival beyond six months.

Plaintiff provided clear and convincing medical documentation that there is substantial medical doubt of her survival beyond six months and that granting trial preference will serve the interests of justice. The motion for trial preference is granted.

II.

Discussion

A.

Legal Standard

The court has discretion to grant a motion for trial preference accompanied by clear and convincing medical documentation concluding that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months and satisfying the court that the interests of justice will be served by granting the preference. (Code Civ. Proc., § 36, subd. (d).) The court may also grant a motion for preference in its discretion if it is supported by a showing that satisfies the court that the interests of justice will be served by granting the preference. (Id., § 36, subd. (e).)

“Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party’s attorney, or upon a showing of good cause stated in the record.” (Id., § 36, subd. (f).) “Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.” (Ibid.)

B.

Analysis

Plaintiff is 68

years old and was diagnosed with malignant pleural mesothelioma in December 2025. (Vincent Decl. at ¶2.) Plaintiff’s medical records show that she was diagnosed with mesothelioma after an abdominal biopsy of a peritoneal nodule taken in December 2025. (Ripley Decl. at ¶¶5-7, Exh. A at pp.198-202.) By February 2026, additional CT scans revealed diffuse peritoneal carcinomatosis, including a tumor in her left mid abdomen that had increased from 2.6 cm to 3 cm, an 11.6 cm tumor in her pelvis, and soft tissue deposits in her anterior abdominal wall. (Id. at ¶¶9, Exh. A at pp.198-202.) A UCI tumor board reviewed Plaintiff’s case and recommended that Plaintiff undergo systemic therapy to alleviate Plaintiff’s symptoms and slow progression. (Id. at ¶10, Exh. A at pp. 114, 183.) The board balanced Plaintiff’s comorbidities and

the fact that there was likely to be disease above her diaphragm in the pericardium and found that she was not a candidate for surgery. (Id.) Specifically, Plaintiff had extensive cardiac history, including the placement of a pacemaker, a valve replacement, and a chronic mitral valve leak. (Id.) These comorbidities, combined with the likelihood that Plaintiff's disease was extensive, meant that "complete cytoreduction [was] not achievable." (Id. at p. 183.) As of April 16, 2026, Plaintiff was undergoing palliative chemotherapy. (Id. at p. 184-185.)

Dr. Robert Ripley, a licensed physician and an expert in mesothelioma and thoracic surgical oncology, opines that there is substantial medical doubt of Plaintiff's survival beyond six months:

"12. Ms. Clark suffers from advanced malignant mesothelioma of the peritoneum, an incurable disease. Ms. Clark's treatment of malignant mesothelioma is ongoing, and she continues to follow-up with her care team at regular intervals for palliative care. Her symptoms since diagnosis have included but are not limited to abdominal discomfort, pain, and fatigue. She experiences ongoing side effects related to palliative procedures, such as increased fatigue, weakness, discomfort at night, and hair thinning. She experiences symptoms related to her comorbidities, including severe iron deficiency due to her Anemia, obesity, cirrhosis of the liver with ascites, and chronic heart failure. She has followed her doctors' recommendations and has made every effort to alleviate her symptoms and enhance her quality of life. Her symptoms will continue to progress as her disease worsens, eventually resulting in her death.

13. There is no set mathematical formula and "decision matrix" for estimating life expectancy in terminal patients. Rather, such judgments are made on a case-by-case basis based on the physician's training, education, experience, and knowledge with regards to the median survival time from diagnosis of malignant mesothelioma.

14. It is my medical opinion as a physician, having personally reviewed Ms. Clark's medical history, that to a reasonable degree of medical certainty, there is substantial doubt that Ms. Clark will survive beyond six months from the date of this declaration. This opinion is based on my training as a physician; my significant experience/knowledge with mesothelioma patients; my review of Ms. Clark's records about her overall health and her current condition. Specifically, she has a large burden of disease, a low performance

status, and comorbidities that each contribute to a lower likelihood of survival. I hold this opinion to a reasonable degree of medical certainty.”

(Ripley Decl. at ¶¶ 12-14.)

In opposition,

Defendants argue that Plaintiff’s evidence fails to meet the clear and convincing standard required by Code of Civil Procedure section 36, subdivision (d) because Dr. Ripley never met or examined Plaintiff and relied solely on her out of date medical records. (Pneumo Abex/BWDAC Opp. at pp.3-4 [“While Plaintiff submitted a declaration from Dr. Ripley, signed August 10, Dr. Ripley never met or examined Plaintiff and, instead, relied solely on a review of Plaintiff’s medical records. Those records were not up to date, as his review was limited to records through Plaintiff’s April 16, 2026 visit. Thus, Dr. Ripley’s opinion was rendered without the benefit of medical information concerning Plaintiff’s condition during the approximately four months preceding his declaration.”].)

In reply, Plaintiff

argues that her medical records are sufficient to establish that there is substantial medical doubt of her survival beyond six months even if they are from April 2026. (Reply at p.6 [“Defendants – perfectly aware that medical treaters focused on treating very ill plaintiffs often taken months to produce medical records - only argue that Dr. Ripley’s declaration must be disregarded since he reviewed records through April 2026; however, again, defendants offer no additional records to evidence some miraculous cure or improvement since April 2026 (including from Ms. Clark’s deposition, taken recently).”].)

Plaintiff’s medical

records and the declaration of Dr. Ripley sufficiently establish by clear and convincing medical documentation that there is substantial medical doubt of her survival beyond six months as required by Code of Civil Procedure section 36, subdivision (d). Plaintiff’s medical records and Dr. Ripley’s opinion establish that Plaintiff has an advanced stage of mesothelioma with a large burden of disease. (Ripley Decl. at ¶14, Exh. A at pp.198-202.) In addition to mesothelioma, Plaintiff has other comorbidities such as severe iron deficiency and chronic heart failure that contribute to a lower likelihood of survival. (Id.) Plaintiff’s medical records further confirm that she is receiving only palliative care that is limited by her other medical conditions. (Ripley Decl. at ¶¶12, Exh. A at pp 114, 183.) Although Plaintiff’s medical records are from April 2026, there is no

indication that her condition will have improved since April 2026. Plaintiff's medical records and Dr. Ripley's opinion are sufficient to meet the clear and convincing standard required under Code of Civil Procedure section 36, subdivision (d).

The interests of justice will also be served by the granting of trial preference. The parties took Plaintiff's deposition in July and August 2026. (Pneumo Abex Opp. at pp. 3-4.) Additionally, discovery is already underway. (Reply at p. 7.) While Defendants argue that trial preference violates their right to due process, the interests of justice would nevertheless be served by trial preference because Plaintiff meets the criteria set forth by Code of Civil Procedure section 36, subdivision (d). In light of the clear and convincing medical documentation that there is substantial medical doubt of her survival beyond six months, the interests of justice would be served by granting preference to allow Plaintiff to participate in trial.

Defendants

request accommodations for discovery and motion deadlines, status conferences, and the trial setting conference. The parties appear amenable to further discussion of the appropriate deadlines for discovery and law and motion matters prior to the submission of a proposed trial setting order. If necessary, the court will review any jointly submitted trial setting order and make rulings on any disputed deadlines at the hearing on the proposed trial setting order.

III.

Conclusion

Plaintiff provided clear and convincing medical documentation that there is substantial medical doubt of her survival beyond six months and that granting trial preference will serve the interests of justice. The motion for trial preference is granted. The parties are to meet and confer regarding appropriate conditions for a trial setting order. The court sets trial for January 19, 2027 at 9 a.m. The final status conference is set for January 4, 2027 at 9 a.m. The court sets a status conference re: trial setting order for October 8, 2026 at 9 a.m. Plaintiff is ordered to give notice.